

		Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. Defendants to give notice.
55	Trinh vs. Nguyen 22-01279860	Motion for Summary Judgment and/or Adjudication Defendant Father Nguyen’s motion for summary judgment is DENIED. Plaintiff objects to the Declarations of Cao Lam, Tran Thanh Man, and Defendant Father Nguyen because the declarations are not accompanied by supporting attestations from an interpreter attesting as to the interpreter’s identity, qualifications, and the accuracy of the translations provided by the interpreter. A witness is disqualified if he or she is “[i]ncapable of expressing himself or herself concerning the matter so as to be understood, either directly or through interpretation by one who can understand him.” (Evid. Code § 701(a).) A recent case, <i>Detrick v. Shimada</i> (April 28, 2026) 120 Cal.App.5th 170, is instructive. In <i>Detrick</i>, the Court of Appeal determined that an English-language declaration was inadmissible when it was executed by a party, Shimada, who could not write or speak English and, thus, could not certify under penalty of perjury that the content of her declaration was true and correct as required by Code of Civil Procedure section 2015.5. (<i>Id.</i> at p. 177.) In the reply brief, Shimada’s attorney submitted a declaration stating that Shimada reviewed the declaration with a Japanese-speaking employee and affirmed each statement before signing. (<i>Id.</i>) The Court of Appeal found that insufficient. Shimada’s declaration that the content of her English-language declaration was true and correct was not competent. Without knowing the identity of the translator and their qualifications <i>and</i> without the translator’s attestation that the translation was accurate, the court “still lack[ed] the necessary link providing a foundation for Shimada’s declaration establishing that it is trustworthy in light of her admitted inability to read or speak English.” (<i>Id.</i> at p. 178.) The Declarations of Cao Lam and Tran Thanh Man each state that because the declarant does not speak English, they reviewed the declaration with the assistance of translators so that they could understand the contents before signing it. (Lam Decl. ¶ 13 [ROA 508], Man Decl. ¶ 15 [ROA 514].) Defendant Father Nguyen declares in his Declaration that English is his second language, and although Defendant is conversational in English, he has “difficulty understanding the legalese and technical terms used in the prior and current lawsuits.” (Father Nguyen Decl. ¶ 3 [ROA 522].) Defendant also declares that “because English is [his] second language, [Defendant] reviewed this declaration with the assistance of translators and [his] counsel to understand its contents before signing it.” (<i>Id.</i> at ¶ 104.) Here, as in <i>Detrick</i>, there is an absence of foundational facts from which the court could ascertain whether the English-language declarations of Cao Lam, Tran Thanh Man, and Father Nguyen are accurate. Defendant argues that his declaration is admissible because Defendant can express himself to be understood and is conversational in English with difficulty only with legalese and technical terms. Defendant’s Declaration, however, consists of 104 paragraphs and over 200 pages of exhibits, the majority of which goes beyond conversational English.

		Unlike the Declarations of Cao Lam, Tran Thanh Man, and Defendant Father Nguyen, the Declaration of Tuan Viet Nguyen does not state that Tuan Viet Nguyen has any limitations regarding the English language. However, Plaintiff submitted a May 22, 2026 email stating that Tuen Viet Nguyen will need a Vietnamese interpreter for his contemplated deposition. (Ta Decl. ¶ 11, Exh. I [ROA 556].) Defendant’s counsel argues that being able to speak and read a language are two different skills. (See <i>id.</i>) This argument is not persuasive. In addition, in his Reply, Defendant submitted Bao Luu’s declaration explaining that he participated in a telephone conference with declarant Tuan Viet Nguyen on July 11, 2026, during which he interpreted Tuan Viet Nguyen’s entire declaration from English to Vietnamese. The court interprets Bao Luu’s certification that he orally interpreted Tuan Viet Nguyen’s Declaration as an admission that Tuan Viet Nguyen has limitations in reading and understanding his English-language Declaration. To cure these defects in the declarations originally filed in support of the motion, Defendant Father Nguyen, in his Reply, submits certifications identifying Bao Luu’s qualifications, the recent review of the declarations submitted in support of the motion, the telephonic interpretation process, and each declarant’s confirmation of the unchanged declaration before re-execution. (Reply at 3:4-7 [ROA 566].) Defendant contends that these certifications satisfy the foundational requirements established in <i>Detrick</i>. (<i>Id.</i> at 3:8.) Defendant then argues that because the certifications do not change any substantive testimony, exhibit, or material fact, the certifications permit the Declarations in support of the motion to be admissible so that they do not qualify as new evidence. The Court disagrees with this position. The record before the court shows that the Declarations originally signed and submitted in support of the motion were defective at the time they were filed as they were not certified by a certified interpreter. Thus, the Reply Declarations containing the sworn certifications are new evidence and the Court declines to consider them. Additionally, there are factors in the translation process that cause the Court to find the declarations untrustworthy. For example, the original declarations were translated by a certified interpreter only after the defect was brought to the attention of the moving party in Plaintiff’s opposition to the motion and the interpreter stated that each declarant did not change any statements in his or her original declaration before re-execution. This alleged solution to the initial defects in the original declarations is dubious. Lastly, the Court finds that without the Declaration of Defendant Father Nguyen, Defendant Father Nguyen cannot meet his initial burden on summary judgment to show that Defendant did not publish each of the 24 alleged defamatory statements with actual malice, which includes a reckless disregard for the truth of the statements. (<i>Edwards v. Ellis</i> (2021) 72 Cal. App.5th 780, 793.) Accordingly, the motion for summary judgment is DENIED. Plaintiff to give notice.
--	--	---

56	Jacobson vs. LaVine & Associates Inc. 22-01269276	Motion for Summary Judgment and/or Adjudication The Motion for Summary Judgment brought by Defendant Best Best & Krieger, LLP (“BBK”) is GRANTED. Defendant’s unopposed Requests for Judicial Notice (ROA Nos. 749 and 753) are GRANTED, pursuant to Evidence Code section 452, subdivision (d), with the limitation that the Court notices only the existence of the documents and the fact of their filing. (<i>Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort</i> (2001) 91 Cal.App.4th 875, 882.) Plaintiffs’ Evidentiary Objections Nos. 1 through 3 (ROA No. 807), directed toward the Declaration of Bruce G. Holden are OVERRULED. Plaintiffs’ Evidentiary Objection No. 4 (ROA No. 807) is SUSTAINED, as the identified statement is conclusory. (See <i>Colby v. Schwartz</i> (1978) 78 Cal.App.3d 885, 889; See also <i>Fuller v. Goodyear Tire & Rubber Co.</i> (1970) 7 Cal.App.3d 690, 693.) Defendant’s Evidentiary Objections directed towards the Declaration of Lawrence Jacobson, Nos. 1 through 8, are OVERRULED. (ROA No. 826.) Defendant’s Evidentiary Objections directed towards the Declaration of Darlene Boliver, Nos. 1, 2, and 4 through 14 are OVERRULED. (ROA No. 826). Objection No. 3 to the Declaration of Darlene Boliver is SUSTAINED, as the identified statement lacks foundation, lacks personal knowledge and is speculative. Defendant’s Evidentiary Objections directed towards the Declaration of Leslie Smith, Nos. 1 through 11, are SUSTAINED. (ROA No. 826.) Objection No. 1 is sustained as the attached trial testimony is hearsay and Plaintiffs have not established application of a hearsay exception, such as Evidence Code section 1292. Objections Nos. 2, 3, 4, 5, 6, 7, 9 and 10 are sustained, for lack of personal knowledge and foundation. Objection No. 8 is sustained as hearsay. Finally, Objection No. 11 to the Declaration of Leslie Smith is sustained for lack of authentication and foundation. With respect to this objection, the same is directed towards Exhibit D, which purportedly consists of “true and correct copies of various documents LaVine produced in response to the Court Order in the Probate Action....” (¶18 of Smith Declaration [ROA No. 808].) Plaintiffs attempt to authenticate the 537 pages included within Exhibit D, by reference to a stipulation with LaVine, wherein in LaVine agreed that documents Bates labelled JLCPA000001-JLCPA017657 “may be authenticated at trial and in pretrial proceedings without the necessity of further testimony solely for purpose of establishing that the documents are what they purport to be, namely, documents produced from the files and electronic media collected from LaVine & Associates in 2020 and copied during the July 2020 production process.” (¶14 of Smith Declaration and Exhibit C thereto, at ¶5 and ¶7 [ROA No. 808].) The Stipulation was not executed under penalty of perjury and makes no attempt to individually authenticate documents. (¶14 of Smith Declaration and Exhibit C thereto [ROA No. 808].) Indeed, the stipulation indicates it was not an admission as to “[t]he truth of any statement contained within any document” or “[t]he authorship of any particular document where authorship is disputed.” (<i>Ibid.</i> at ¶8.) As noted by Defendant, the above fails to authenticate the “hundreds of pages of transaction documents, emails, handwritten notes, and accounting documents” included within the Exhibit. (See Objection No. 11 to Smith Declaration [ROA
----	---	--